



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 23RD DAY OF JULY, 2025

BEFORE

THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE

WRIT PETITION NO. 1209 OF 2025 (L-RES)

BETWEEN:

PARAMESHAIAH,
S/O LATE KUNDAJOGANAYAKA,
AGED ABOUT 57 YEARS,
WORKING AS SKILLED FARM WORKER (T/S),
SILD SEED PRODUCTION CENTRE,
NATIONAL SILKWORM SEED ORGANIZATION,
CENTRAL SILK BOARD, OPP SUB JAIL,
HUSNUR ROAD, AND R/AT KALENAHALLI,
HOSABADAVANE, SARVANJA ROAD,
K R NAGARA TOWN, KRISHNARAJANGARA,
MYSURU - 571602.

...PETITIONER

(BY SRI. NARAYANA BHAT M.,ADVOCATE)

AND:

1. CENTRAL SILK BOARD,
REP BY ITS MEMBER SECRETARY,
CSB COMPELX, BTM LAYOUT,
MADIWALA, BENGALURU - 560068.
2. THE DIRECTOR,
CENTRAL SIILK BORAD
NATIONAL SILK WORM SEED ORGANISATION,
CETNRAL SILK BOARD,
2ND CROSS, DOLLRS SCHEME,
BTM 2ND STAGE, MADIVALA,
BENGALURU - 560068.

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Location:
HIGH COURT
OF
KARNATAKA





3. SCIENTESIT D,
SILK SEED PRODUCTION CENTRE,
NATIONAL SILKWORM SEED ORGANISATION,
CENTRAL SILK BOARD, OPP SUB JAIL,
HUNSURU ROAD, K R NAGAR, MYSURU - 571602.
4. SCIENTIST B,
SILK SEED PRODUCTION CENTRE,
NATIONAL SILKWORK SEED ORGANISATION,
CENTRAL SILK BOARD,
OPP SUB JAIL, HUNSUR ROAD,
K R NAGAR, MYSURU 571602

...RESPONDENTS

(BY SRI. NARASIMHA SWAMY N S.,ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA PRAYING TO CALL FOR THE RECORDS PERTAINING TO THE CASE OF THE PETITIONER AND GRANT HIM THE FOLLOWING RELIEFS. QUASH THE CLAUSE A-11 OF ORDER BEARING NO.CSB/NSSO/SSPC/KRN/TSW/PF/2015/16 DTD. 30.03.2016 ISSUED BY THE R-E MARKED AT ANNEX-A IN SO FAR AS AGE OF RETIREMENT IS ON ATTAINING AGE OF 58 YEARS ISSUED BY THE R-3 AS THE SAME ARE OPPOSED TO THE AWARD DTD. 01.04.2013 IN C.R.NO. 151/2007 PASSED BY THE CGIT MARKED AT ANNEX-B AND ALSO SEC.18(3) (d) OF THE INDUSTRIAL DISPUTES ACT, 1947 AND ARTICLE 14 AND 21 OF THE CONSTITUTION.

THIS PETITION, COMING ON FOR PRELIMINARY HEARING IN 'B' GROUP, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE

ORAL ORDER

This petition is directed against the memorandum issued by 2nd respondent. In terms of the said



memorandum it is informed that the petitioner will be relieved from service on completing 58 years which according to the respondent is the age of superannuation.

2. Writ of mandamus is also sought to direct the respondents to continue the petitioner in service till the petitioner completes the age of 60 years which according to the petitioner is the age of superannuation.

3. The third prayer is to direct the respondents to pay salary for the period from 58 years to 60 years. It is relevant to note that the petitioner is yet to complete 60 years.

4. The petitioner had filed the petition in the light of the judgment rendered by the Division Bench of this Court in W.P. No.18693/2014 wherein, in terms of the order dated 04.09.2024, this Court has dismissed the petition filed by first respondent Central Silk Board and confirmed the award passed by the Central Government Industrial Tribunal cum Labour Court.



5. In terms of the award dated 01.04.2013, the Tribunal has held that age of superannuation of the employees of the respondent establishment would be 60 years and not 55 years as contended by the respondent.

6. Learned counsel for the petitioner would submit that the order passed by the Division Bench of this Court confirming the award passed by the Tribunal is not questioned by the respondents and it has attained finality.

7. Thus, the learned counsel would submit that the petitioner cannot be superannuated at the age of 58, and the petitioner is entitled to work as the employee of respondent No.1 till the petitioner completes 60 years.

8. Learned counsel for respondents would submit that though the Board of the respondent has passed a resolution to implement the order, with effect from the date of the order passed in the writ petition, the Board is yet to receive the approval from the Union of India for the



decision taken by the Board. It is further submitted that since respondents are awaiting the decision of Union of India, from the perspective of the respondents, the award passed by the Central Government Industrial Tribunal has not yet attained finality.

9. This Court has considered the contentions raised at the bar and perused the records.

10. It is not in dispute that the award passed by the Tribunal enhancing the age of retirement to 60 years from 58 years is confirmed by the Division Bench in W.P. No.18693/2014. It is further not in dispute that the petitioner is the employee of respondent No.1. The petitioner has completed 58 years after the order passed by the Division Bench of this Court confirming the award passed by the Tribunal.

11. This being the position, the award passed by the Tribunal which is confirmed by the Division Bench of



this Court comes to the aid of the petitioner and the petitioner is entitled to the following relief:-

- (i) It is declared that the petitioner's age of superannuation is 60 years.
- (ii) The respondents shall not superannuate the petitioner treating the age of retirement as 58.
- (iii) The petitioner is entitled to continue in employment as Timescale Farm Workers under first respondent till the age of superannuation at 60 subject to all Rules and Regulations applicable to the employment of the petitioner.
- (iv) The prayer for grant of service benefits for the period from 58 to 60 years cannot be granted at this stage as the petitioner is yet to complete 60 years of service.
- (v) The payment of service benefits period from 58 to 60 years shall be subject to the terms and



conditions applicable to the employment under
respondent No.1.

The writ petition is accordingly ***disposed of*** with the
above observations and findings.

Sd/-
(ANANT RAMANATH HEGDE)
JUDGE

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List No.: 1 SI No.: 0